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DEPARTMENT OF THE NAVY
NAVAL FACILITIES
ENGINEERING COMMAND
GUIDE SPECIFICATION

NFGS-00100G
30 September 1995

Superseding NFGS-00100F (06/95)

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NFGS-00100G

INSTRUCTIONS TO BIDDERS

AMSC N/A

ARRA FACR

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SECTION 00100

INSTRUCTIONS TO BIDDERS
09/95

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NOTE: This section contains \@requirements for preparation and submission of bids for sealed-bid construction contracts@\. The following clauses are from the Federal Acquisition Regulation (FAR), Department of Defense Federal Acquisition Regulation Supplement (DFARS), and the NAVFAC Contracting Manual (FAC), Baseline Provisions/Clauses JUN 1994. Supplement Updates are through \&FAC-90-29 and DAC-91-8&\.
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NOTE: This revision "G" to NFGS-00100 amends the issue date 30 June 1995 by adding and revising clauses as denoted by change tokens.
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1.1 SUMMARY

The following clauses are from the Federal Acquisition Regulation (FAR), Department of Defense Federal Acquisition Regulation Supplement (DFARS), and the NAVFAC Contracting Manual FAC).

1.2 [UNIT PRICES

****
NOTE: Use this paragraph if there are unit prices in addition to the Base Bid. Use FAR 52.212-11 also. Coordinate with preparer of Section 01025.
****

Under the bidding items furnished on Standard Form 1442 (Solicitation, Offer, and Award) bidders shall state prices for each bid item given hereinafter.

(1) Base Bid 0001 shall be the entire work complete in accordance with the drawings and specifications based on the following breakdown:

(a) Price items listed below; $_____.

(b) Unit price per [_____] for [_____].
$_____per[____] x [____] = $_____

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Total Price Base Bid Item 0001
$_____

Bids must be submitted on all items. Failure to bid on all items may result in the Bid being rejected as non-responsive.

1.3 DFARS 252.204-7001, COMMERCIAL AND GOVERNMENT ENTITY (CAGE) CODE REPORTING (DEC 1991)

(a) The Offeror is requested to enter its CAGE code on its offer in the block with its name and address. The CAGE code entered must be for that name and address. Enter CAGE before the number.

(b) If the Offeror does not have a CAGE code, it may ask the Contracting Officer to request one from the Defense Logistics Services Center (DLSC). The Contracting Officer will--

(1) Ask the Contractor to complete section B of a DD Form 2051, Request for Assignment of a Commercial and Government Entity (CAGE) Code;

(2) Complete section A and forward the form to DLSC; and

(3) Notify the Contractor of its assigned CAGE code.

(c) Do not delay submission of the offer pending receipt of a CAGE code.

1.4 DFARS 252.209-7001 DISCLOSURE OF OWNERSHIP OR CONTROL BY THE GOVERNMENT OF A TERRORIST COUNTRY (SEP 1994)

****
NOTE: Always use if greater than $100,000.
****

(a) Definitions. As used in this provision--

(1) "Government of a terrorist country" includes the state and the government of a terrorist country, as well as any political subdivision, agency, or instrumentality thereof.

(2) "Terrorist country" means a country determined by the Secretary of State, under section 6(j)(1)(A) of the Export Administration Act of 1979 (50 U.S.C. App. 2405(j)(i)(A)), to be a country the government of which has repeatedly provided support for acts of international terrorism. As of the date of this provision, terrorist countries include: Cuba, Iran, Iraq, Libya, North Korea, Sudan, and Syria.

(3) "Significant interest" means--

(i) Ownership of or beneficial interest in 5 percent or more of the firm's or subsidiary's securities. Beneficial interest includes holding 5 percent or more of any class of the firm's securities in "nominee shares," "street names," or some other method of holding securities that does not disclose the beneficial owner;

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(ii) Holding a management position in the firm, such as a director or officer;

(iii) Ability to control or influence the election, appointment, or tenure of directors or officers in the firm;

(iv) Ownership of 10 percent or more of the assets of a firm such as equipment, buildings, real estate, or other tangible assets of the firm; or

(v) Holding 50 percent or more of the indebtedness of a firm.

(b) Prohibition on award. In accordance with 10 U.S.C. 2327, no contract may be awarded to a firm or a subsidiary of a firm if the government of a terrorist country has a significant interest in the firm or subsidiary, unless a waiver is granted by the Secretary of Defense.

(c) Disclosure. If the government of a terrorist country has a significant interest in the Offeror or a subsidiary of the Offeror, the Offeror shall disclose such interest in an attachment to its offer. If the Offeror is a subsidiary, it shall also disclose any significant interest the government of a terrorist country has in any firm that owns or controls the subsidiary. The disclosure shall include--(1) Identification of each government holding a significant interest; and

(2) A description of the significant interest held by each government.

1.5 DFARS 252.209-7003, DISCLOSURE OF COMMERCIAL TRANSACTIONS WITH THE GOVERNMENT OF A TERRORIST COUNTRY (SEP 1994)

****
NOTE: Always use if greater than $5,000,000.
****

(a) Definitions. "Government of a terrorist country" and "terrorist country" are defined in the Reporting of Commercial Transactions with the Government of a Terrorist Country clause of this solicitation.

(b) Disclosure.

(1) Section 843 of the National Defense Authorization Act for Fiscal Year 1994 (Pub. L. 103-160) requires offerors to disclose commercial transactions conducted with the government of a terrorist country. If this offer exceeds $5,000,000, and if the Offeror has conducted such transactions, the Offeror shall disclose, in an attachment to its offer, each commercial transaction that it has conducted with the government of a terrorist country since February 28, 1994. The disclosure shall include--

(i) Identification of the government with which each transaction was conducted; and

(ii) The nature of each transaction.

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(2) This disclosure requirement does not apply to--

(i) Transactions conducted by affiliates or subsidiaries of the Offeror; or

(ii) Payment or receipt of payment of a judgment or award ordered by a court or arbitral tribunal of competent jurisdiction.

1.6 FAR 52.210-2, AVAILABILITY OF SPECIFICATIONS LISTED IN THE DOD INDEX OF SPECIFICATIONS AND STANDARDS (DODISS) (MAR 1994)

Single copies of specifications cited in this solicitation may be obtained by submitting a written request to the supply point listed below. The request must contain the title of the specification, its number, date, applicable amendment(s), and the solicitation or contract number. A telephone order entry system is available with the use of a touch tone telephone. A Customer Number is required to use this system and may be obtained by written request to the address listed below or by telephone (215-697-2179). In case of urgency, telephone or telegraphic requests are acceptable. Voluntary standards, which are not available to offerors and contractors from Government sources, may be obtained from the organization responsible for their preparation, maintenance, or publication.

Standardization Document Order Desk, Building 4, Section D 700 Robbins Avenue Philadelphia, PA 19111-5094

Facsimile Number -- -- -- (215) 697-2978
Telephone Order Entry System (TOES)
Numbers -- -- 215-697-1187 through and including 215-697-1197

1.7 DFARS 252.210-7001, AVAILABILITY OF SPECIFICATIONS AND STANDARDS NOT LISTED IN DODISS, DATA ITEM DESCRIPTIONS NOT LISTED IN DOD 5010.12 - L, AND PLANS, DRAWINGS, AND OTHER PERTINENT DOCUMENTS (DEC 1991)

****
NOTE: Insert in the blank below, the activity and the complete address.
****

Offers may obtain the specifications, standards, plans, drawings, data item descriptions, and other pertinent documents cited in this solicitation by submitting request to: [_____].

Include the number of the solicitation and the title and number of the specification, standard, plan, drawing, or other pertinent document.

1.8 DFARS 252.210-7002, AVAILABILITY FOR EXAMINATION OF SPECIFICATIONS, STANDARDS, PLANS, DRAWINGS, DATA ITEM DESCRIPTIONS, AND OTHER PERTINENT DOCUMENTS (DEC 1991)

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NOTE: At the blank below, insert complete address.
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The specifications, standards, plans, drawings, data item descriptions, and other pertinent documents cited in this solicitation are not available for distribution but may be examined at the following location:

[_____]

1.9 FAR 52.212-7, NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE USE (SEP 1990)

****
NOTE: Contracting Officer check appropriate box.
****

Any contract awarded as a result of this solicitation will be a __ DX rated order; __ do rated order certified for national defense use under the Defense Priorities and Allocations System (DPAS) (15 CFR part 700), and the Contractor will be required to follow all of the requirements of this regulation.

1.10 FAR 52.214-1, SOLICITATION DEFINITIONS -- SEALED BIDDING (JUL 1987)

"Government" means United States Government.

"Offer" means "bid" in sealed bidding.

"Solicitation" means an invitation for bids in sealed bidding.

1.11 FAR 52.214-3, AMENDMENTS TO INVITATIONS FOR BIDS (DEC 1989)

(a) If this solicitation is amended, then all terms and conditions which are not modified remain unchanged.

(b) Bidders shall acknowledge receipt of any amendment to this solicitation

(1) by signing and returning the amendment,

(2) by identifying the amendment number and date in the space provided for this purpose on the form for submitting a bid,

(3) by letter or telegram, or

(4) by facsimile, if facsimile bids are authorized in the solicitation.

The Government must receive the acknowledgment by the time and at the place specified for receipt of bids.

1.12 FAR 52.214-4, FALSE STATEMENTS IN BIDS (APR 1984)

Bidders must provide full, accurate, and complete information as required by this solicitation and its attachments. The penalty for making false statements in bids is prescribed in 18 U.S.C. 1001.

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1.13 FAR 52.214-5, SUBMISSION OF BIDS (DEC 1989)

(a) Bids and bid modifications shall be submitted in sealed envelopes or packages, (1) addressed to the office specified in the solicitation, and (2) showing the time specified for receipt, the solicitation number, and the name and address of the bidder.

(b) Telegraphic bids will not be considered unless authorized by the solicitation; however, bids may be modified or withdrawn by written or telegraphic notice, if such notice is received by the time specified for receipt of bids.

(c) Facsimile bids, modifications, or withdrawals, will not be considered unless authorized by the solicitation.

1.14 FAR 52.214-6, EXPLANATION TO PROSPECTIVE BIDDERS (APR 1984)

Any prospective bidder desiring an explanation or interpretation of the solicitation, drawings, specifications, etc., must request it in writing soon enough to allow a reply to reach all prospective bidders before the submission of their bids. Oral explanations or instructions given before the award of a contract will not be binding. Any information given a prospective bidder concerning a solicitation will be furnished promptly to all other prospective bidders as an amendment to the solicitation, if that information is necessary in submitting bids or if the lack of it would be prejudicial to other prospective bidders.

1.15 FAR 52.214-7, LATE SUBMISSIONS, MODIFICATIONS, AND WITHDRAWALS OF BIDS (DEC 1989)

(a) Any bid received at the office designated in the solicitation after the exact time specified for receipt will not be considered unless it is received before award is made and it-

(1) Was sent by registered or certified mail not later than the fifth calendar day before the date specified for receipt of bids (e.g., a bid submitted in response to a solicitation requiring receipt of bids by the submitted in response to a solicitation requiring receipt of bids by the 20th of the month must have been mailed by the 15th); or

(2) Was sent by mail, if authorized by the solicitation, was sent by telegram or via facsimile, and it is determined by the Government that the late receipt was due solely to mishandling by the Government after receipt at the Government installation.

(3) Was sent by U.S. Postal Service Express Mail Next Day Service-Post Office To Addressee, not later than 5:00 P.M. at the place of mailing two working days prior to the date specified for receipt of bids. The term "working days" excludes weekends and U.S. Federal holidays.

(b) Any modification or withdrawal of a bid is subject to the same conditions as in paragraph (a) above.

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(c) The only acceptable evidence to establish the date of mailing of a late bid, modification, or withdrawal sent either by registered or certified mail is the U.S. or Canadian Postal Service postmark both on the envelope or the wrapper and on the original receipt from the U.S. or Canadian Postal Service. Both postmarks must show a legible date, or the bid, modification, or withdrawal shall be processed as if mailed late. "Postmark" means a printed, stamped, or otherwise placed impression (exclusive of a postage meter machine impression) that is readily identifiable without further action as having been supplied and affixed by employees of the U.S. or Canadian Postal Service on the date of mailing. Therefore, bidders should request the postal clerks to place a hand cancellation bull's-eye postmark on both the receipt and the envelope or wrapper.

(d) The only acceptable evidence to establish the time of receipt at the Government installation is the time/date stamp of that installation on the bid wrapper or other documentary evidence of receipt maintained by the installation.

(e) The only acceptable evidence to establish the date of mailing of a late bid, modification, or withdrawal sent by U.S. Postal Service Express Mail Next Day Service-Post Office to Addressee is the date entered by the post office receiving clerk on the "Express Mail Next Day Service-Post Office to Addressee" label and the postmark on the envelope or wrapper and on the original receipt from the U.S. Postal Service. "Postmark" has the same meaning as defined in paragraph (c) of this provision, excluding postmarks of the Canadian Postal Service. Therefore, bidders should request the postal clerk to place a legible hand cancellation bull's-eye postmark on both the receipt and the envelope or wrapper.

(f) Notwithstanding paragraph (a) above, a late modification of an otherwise successful bid that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(g) Bids may be withdrawn by written notice or telegram (including mailgram) received at any time before the exact time set for receipt of bids. If the solicitation authorizes facsimile bids, bids may be withdrawn via facsimile received at any time before the exact time set for receipt of bids, subject to the conditions specified in the provision entitled "Facsimile Bids." A bid may be withdrawn in person by a bidder or its authorized representative if, before the exact time set for receipt of bids, the identity of the person requesting withdrawal is established and that person signs a receipt for the bid.

1.16 FAR 52.214-18, PREPARATION OF BIDS--CONSTRUCTION (APR 1984)

(a) Bids must be, (1) submitted on the forms furnished by the Government or on copies of those forms, and (2) manually signed. The person signing a bid must initial each erasure or change appearing on any bid form.

(b) The bid form may require bidders to submit bid prices for one or more items on various bases, including -- (1) Lump sum bidding; (2) Alternate prices; (3) Units of construction; or (4) Any combination of subparagraphs (1) through (3) above.

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(c) If the solicitation requires bidding on all items, failure to do so will disqualify the bid. If bidding on all items is not required, bidders should insert the words "no bid" in the space provided for any item on which no price is submitted.

(d) Alternate bids will not be considered unless this solicitation authorizes their submission.

1.17 FAR 52.214-19, CONTRACT AWARD -- SEALED BIDDING -- CONSTRUCTION (FEB 1986)

(a) The Government will evaluate bids in response to this solicitation without discussions and will award a contract to the responsible bidder whose bid, conforming to the solicitation, will be most advantageous to the Government, considering only price and the price-related factors specified elsewhere in the solicitation.

(b) The Government may reject any or all bids, and waive informalities or minor irregularities in bids received.

(c) The Government may accept any item or combination of items, unless doing so is precluded by a restrictive limitation in the solicitation or the bid.

1.18 FAC 5252.214-9300, BASIS FOR AWARD (JUN 1994)

(a) The low bidder for purposes of award shall be the conforming, responsive, responsible bidder offering the lowest total price of Contract Line Items [_____]. Bids are solicited on an "all or none" basis. Failure to submit bids for all items and quantities listed shall be cause for rejection of the bid. Subparagraph (c) of clause "FAR 52.214-10, Contract Award-Sealed Bidding," (JUL 1990) does not apply to this award.

****
NOTE: Add if award less than 12 months.
****

(b) Bids shall be submitted for the performance of work for the period identified in the "Period of Performance" paragraph. Bidders are cautioned that the initial term of the contract may be for a period of less than one full year.

1.19 FAC 5252.214-9301, NOTICE TO BIDDERS (JUN 1994)

(a) Under the bidding items furnished on Standard Form 1442 (Solicitation Offer and Award) the bidder shall state the prices for each basis for bid given hereinafter: (check if applicable).

____ (i) Base Bid Item 0001 shall be the entire work complete in accordance with the drawings and specifications, but not including work indicated or specified to be provided under any of the other bid items.

____ (ii) Additive Bid Items shall be for the work as identified in [_____] and not included in any other bid item.

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BIDS MUST BE SUBMITTED ON ALL ITEMS. FAILURE TO PROPOSE ON ALL ITEMS MAY RESULT IN THE BID BEING REJECTED AS NON-RESPONSIVE.

****
NOTE: Identify name and address of activity.
****

(d) All hand delivered bids must be deposited in the bid box at the office of [_____] prior to the time and date set for bid opening. Any bids submitted by hand after the time set for receipt will be stamped with the date and hour of receipt and held unopened until after award. The file shall be documented in accordance with FAR 14.304-4.

1.20 FAC 5252.214-9304, PRE-BID SITE VISITATION (JUN 1994)

****
NOTE: First paragraph, insert hours and days the work site will be available to potential bidders/offerors. Second paragraph, insert contact point and telephone number.
****

(a) The site will be available for visitation at [_____].

or

Arrangements to visit the site may be made by contacting [_____] during regular working hours at [_____]. Site visits are restricted to regular working hours.

(b) Visitors may be required to present documentation evidencing personal identification and firm affiliation.

1.21 DFARS 252.219-7009, CERTIFICATE OF COMPETENCY (APR 1993)

(a) In the event of a determination of nonresponsibility on a small business offeror, the Contracting Officer will--

(1) Notify the Offeror, in writing, of the determination and of the Offeror's right, under Section 8(b)(7) of the Small Business Act, to request that the Small Business Administration (SBA) make a determination of the Offeror's responsibility under the Certificate of Competency Program.

(2) Withhold award until the Offeror's response is received or 14 calendar days from receipt of the notice by the Offeror.

(3) Upon timely receipt of an affirmative response from the Offeror, refer the matter to the SBA.

(4) Upon receipt of a negative response from the Offeror, or if a timely response is not received, award to another offeror.

(b) The Offeror shall notify the Contracting Officer, in writing, within 14

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days of receipt of a notification of a nonresponsibility determination, as to whether or not it desires a request for an SBA determination of responsibility.

1.22 FAR 52.222-23, AFFIRMATIVE ACTION COMPLIANCE (APR 1984)

****

NOTE: Insert the applicable percentages and covered area from the Department of Labor Notice, as published in 45 FR 65979 (October 3, 1980 issue of the Federal Register).

****

Notice of requirement for affirmative action to ensure equal employment opportunity (APR 1984):

a. The offerors attention is called to the Equal Opportunity clause and the Affirmative Action Compliance Requirements for Construction clause of this solicitation.

b. The goals for minority and female participation, expressed in percentage terms for the Contractor's aggregate workforce in each trade on all construction work in the covered area, are as follows:

Goals for minority participation for each trade	Goals for female participation for each trade
[_____]	[_____]

These goals are applicable to all the Contractor's construction work performed in the covered area. If the Contractor performs construction work in a geographical area located outside of the covered area, the Contractor shall apply the goals established for the geographical area where the work is actually performed. Goals are published periodically in the Federal Register in notice form, and these notices may be obtained from any Office of Federal Contract Compliance Programs office.

c. The Contractor's compliance with Executive Order 11246 as amended, and the regulations in 41 CFR 60.4 shall be based on its implementation of the Equal Opportunity clause, (2) specific affirmative action obligations required by the clause entitled "Affirmative Action Compliance Requirements for Construction," and (3) its efforts to meet the goals. The hours of minority and female employment and training must be substantially uniform throughout the length of the contract, and in each trade. The Contractor shall make a good faith effort to employ minorities and women evenly on each of its projects. The transfer of minority or female employees or trainees from Contractor to Contractor, or from project to project, for the sole purpose of meeting the Contractor's goals shall be a violation of the contract, Executive Order 11246, as amended, and the regulations in 41 CFR 60.4. Compliance with the goals will be measured against the total

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work hours performed.

d. The Contractor shall provide written notification to the Director, Office of Federal Contract Compliance Programs, within 10 working days following award of any construction subcontract in excess of $10,000 at any tier for construction work under the contract resulting from this solicitation. The notification shall list the--

(1) Name, address, and telephone number of the subcontractor;
(i) Employer identification number of the subcontractor;

(2) Estimated dollar amount of the subcontract;

(3) Estimated starting and completion dates of the subcontract; and

(4) Geographical area in which the subcontract is to be performed.

e. As used in this Notice, and in any contract resulting from this solicitation, the "covered area" is [_____].

1.23 \&DFARS 252.228-7007 PAYMENT PROTECTIONS IN CONSTRUCTION CONTRACT BETWEEN $25,000 AND $100,000 (JUL 1995)&\

(a) The contractor shall submit a payment bond or one of the following alternatives to a payment bond:

(b) The penal sum of the bond or alternative payment protection shall be in the amount of $_____.

(c) The submission of acceptable alternative payment protection is required by _____.

(d) The bond or alternative shall provide payment protection for the full contract performance period plus a one-year period and shall authorize contracting officers to immediately access funds at any time and withhold them pending resolution by administrative or judicial proceedings or mutual agreement of the parties, except for escrow agreements which provide for a disputes resolution procedure.

(e) Except for escrow agreements which provide their own protection procedures, the contracting officer is authorized to access funds under the alternative payment protection when it has been alleged in writing by a supplier of labor or material that a nonpayment has occurred.

(f) When a tripartite escrow agreement is used, the contractor shall utilize only suppliers of labor and material who signed the escrow agreement.

1.24 FAC 5252.228-9300, INDIVIDUAL SURETY/SURETIES (JUN 1994)

As prescribed in FAR 28.203(a), individual sureties will be permitted. In order for the Contracting Officer to make a determination as to the acceptability of individuals proposed as sureties, as prescribed in FAR 28.203(b), all proposers who submit bonds which are executed by individual sureties are requested to furnish additional information in support of

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SF-28, Affidavit of Individual Surety, with the bonds. Pursuant to Instruction 3(b) of Standard Form 24, the Bond, Standard Form 25, the Performance Bond, and the Standard Form 25A, the Payment Bond, the Contracting Officer requests the following information:

(a) Equity Securities (Stock):

(1) State the place(s) of incorporation and address of the principal place of business for each issuing corporation listed.
(2) State whether the security issued was issued by public or private offering and give the place of registration of the security.
(3) State whether the security is presently, actively traded.

(b) Debt securities (Bonds) and Certificates of Deposit:

(1) List the type of bonds held and their maturity dates.
(2) State the name, address, and telephone number of the issuing agency, firm or individual.
(3) State the complete address(es) where the bonds are held.
(4) State whether the bonds have been pledged as security or have otherwise been encumbered.

(c) Real Property Interests:

(1) Provide complete recording data for the conveyance of each parcel or interest listed to the individual proposed as surety.
(2) State whether the values listed are based upon personal evaluation or evaluation of an experienced real estate appraiser. If available, provide copies of written appraisals.
(3) State the method(s) of valuation upon which appraisal is based.
(4) Provide the assessed value of each property interest listed utilized by the appropriate tax assessor for purposes of property taxation.
(5) Provide the telephone number, including area code, for the tax assessor who performed the most recent tax assessment.
(6) State whether each real property interest listed is currently under lien or in any way encumbered and the dollar amount of each such lien or encumbrance.

(d) Persons Proposed as Individual Sureties:

(1) A current list of all other bonds (bid, performance, and payment) on which the individual is a surety and bonds for which the individual is requesting to be a surety.
(2) A statement as to the percent of completion of projects for which the individual is bound on a performance bond.

This information is necessary to enable the Contracting Officer to evaluate the sufficiency of the surety's net worth in a timely manner.

1.25 FAC 5252.228-9302, BID GUARANTEE (JUN 1994)

Each bidder shall submit with its bid a guarantee bond (Standard Form 24) executed by a surety company holding a certificate of authority from the Secretary of the Treasury as an acceptable surety, or other security as provided in clause "FAR 52.228-1, Bid Guarantee." Security shall be in the sum of 20 percent of the largest amount for which award can be made under the bid submitted, but in no case to exceed $3,000,000. The bid guarantee bond shall be accompanied by a copy of the agent's authority to sign bonds

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for the surety company.

1.26 FAR 52.233-2, SERVICE OF PROTEST (NOV 1988)

****

NOTE: At the blank below, Contracting Officer should designate the official and location where a protest may be served on the Contracting Officer.

****

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the General Accounting Office (GAO) or the General Services Administration Board of Contract Appeals (GSBCA), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from [_____].

(b) The copy of any protest shall be received in the office designated above on the same day a protest is filed with the GSBCA or within one day of filing a protest with the GAO.

1.27 FAR 52.236-4, PHYSICAL DATA (APR 1984)

****

NOTE: Insert this clause when physical data (e.g., test borings, hydrographic, weather conditions data) will be furnished or made available to offerors. All information to be furnished or made available to offerors before award that pertains to the performance of the work should be identified in the clause. When subparagraphs are not applicable they may be deleted.

****

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by [_____] [insert a description of investigational methods used, such as surveys, auger borings, core borings, test pits, probings, test tunnels].

(b) Weather conditions [_____] [insert a summary of weather records and warnings].

(c) Transportation facilities [_____] [insert a summary of transportation facilities providing access from the site, including information about their availability and limitations].

(d) [_____] [Insert other pertinent information].

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1.28 FAR 52.236-27, SITE VISIT (CONSTRUCTION) (FEB 1995)

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigation and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) Site visits may be arranged during normal duty hours by contacting:

Name: _____
Address: _____
_____
Telephone: _____

****
NOTE: If an organized site visit will be conducted, use Alternate I.
****

ALTERNATE I (FEB 1995)

(b) An organized site visit has been scheduled for:

_____
(Insert date and time)

(c) Participants will meet at--

_____
(Insert location).

1.29 DFARS 252.236-7007, ADDITIVE OR DEDUCTIVE ITEMS (DEC 1991)

****
NOTE: Applies only to solicitations and contracts with additive or deductive bid items.
****

(a) The low offeror and the items to be awarded shall be determined as follows

(1) Prior to the opening of bids, the Government will determine the amount of funds available for the project.

(2) The low offeror shall be the Offeror that--(i) Is otherwise eligible for award; and (ii) Offers the lowest aggregate amount for the first or base bid item, plus or minus (in the order stated in the list of priorities in the bid schedule) those additive or deductive items that provide the most features within the funds determined available.

(3) The Contracting Officer shall evaluate all bids on the basis of the same additive or deductive items. (i) If adding another item from the bids schedule list of priorities would make the award exceed the available funds for all offerors, the Contracting Officer will skip that item and go to the next item from the bid schedule of

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priorities; and (ii) Add that next item if an award may be made that includes that item and is within the available funds.

(b) The Contracting Officer will use the list of priorities in the bid schedule only to determine the low offeror. After determining the low offeror, an award may be made on any combination of items if--

(1) It is in the best interest of the Government;

(2) Funds are available at the time of award; and

(3) The low offeror's price for the combination to be awarded is less than the price offered by any other responsive, responsible offeror.

(c) Example. The amount available is $100,000. Offeror A's base bid and four additives (in the order stated in the list of priorities in the bid Schedule) are $85,000, $10,000, $8,000, $6,000, and $4,000. Offeror B's base bid and four additives are $80,000, $16,000, $9,000, $7,000, and $4,000. Offeror A is the low offeror. The aggregate amount of offeror A's bid for purposes of award would be $99,000, which includes a base bid plus the first and fourth additives. The second and third additives were skipped because each of them would cause the aggregate bid to exceed $100,000.

1.30 FAR 52.252-1, SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (JUN 1988)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

1.31 [FAR 52.252-5, AUTHORIZED DEVIATIONS IN PROVISIONS (APR 1984)

****

NOTE: Whenever any FAR or supplemental provision is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the provision when it is used without deviation, include regulation name for any supplemental provision, except that the contracting officer shall insert "(DEVIATION)" after the date of the provision.

****

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any [_____] [insert regulation name] (48 CFR Chapter [_____] provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.]

****

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NOTE: Suggestions for improvement of this specification will be welcomed using the Navy "Change Request Forms" subdirectory located in SPECSINTACT in Jobs or Masters under "Forms/Documents" directory or DD Form 1426. Suggestions should be forwarded to:

Commanding Officer
Naval Construction Battalion Center
NAVFAC 15G/CESO 158
1000 23rd Avenue
Port Hueneme, CA 93043-4301

FAX: (805) 985-6465/982-5196

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-- End of Section --

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DEPARTMENT OF THE NAVY
NAVAL FACILITIES
ENGINEERING COMMAND
GUIDE SPECIFICATION

NFGS-00100G
30 September 1995

Superseding NFGS-00100F (06/95)

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DEPARTMENT OF THE NAVY GENERAL NOTES (October 1995)
NAVAL FACILITIES
ENGINEERING COMMAND
****

GENERAL NOTES

Guidance for use of this Naval Facilities Guide Specification (NFGS):

1. The NFGS is in the three-part section format established by the Construction Specifications Institute and adopted by the Department of the Navy. It is designed to ease preparation of the project specification section with the SPECSINTACT Processing System.

2. All technical notes are inserted in the body of the NFGS, separated from text by lines of asterisks. All notations immediately precede the text to which they apply. DO NOT INCLUDE NOTES OR NOTATIONS IN THE PROJECT SPECIFICATION SECTION. (Notes can be deleted automatically when using SPECSINTACT.)

3. Do not refer to the NFGS in the project specification. Use it as a manuscript, editing and modifying to meet project requirements. Where "as shown," "as indicated," "as detailed," or similar words are used, include all requirements so designated on the project drawings.

4. Do not include in the project specification:

    a. Signature Sheet
    b. Table of Contents
    c. Notes
    d. Sketches, if any
    e. General Notes
    f. Other supplemental information, if any, attached to this guide specification.

5. Place project title in upper left corner of each page and limit to 66 character spaces on one line. (Automatically printed when using SPECSINTACT if the project title is entered as the title in the Job Set-Up Screen).

6. Place project specification number in upper right corner of each page. (Automatically printed when using SPECSINTACT if the project specification number is entered as the job name in the Job Set-Up Screen.)

7. Center project specification section number and page number at bottom of each page of the section created from this guide specification. (Automatically printed when using SPECSINTACT.)

8. Where numbers, symbols, words, phrases, clauses, sentences, or paragraphs in this guide specification are enclosed in brackets, [], a choice or modification must be made; delete inapplicable portion(s) and brackets. Where blank spaces enclosed in brackets occur, insert appropriate data. Delete inapplicable text and, if not using

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SPECSINTACT, renumber subsequent articles, paragraphs, sub-paragraphs, accordingly. (Renumbering is done automatically during the print process when using SPECSINTACT.)

9. The article "REFERENCES" never contains numbered paragraphs or subparagraphs. Each organization's publications are listed beneath the organization name. Revision letters or dates identifying the current edition appear in parentheses followed by the title.

10. Use the latest issue of the referenced publications, but only after reviewing to ensure that it will satisfy the minimum essential requirements of the project. If the latest issue does not satisfy project requirements:

    1. Use the issue shown; or
    2. Select and refer to a document which does; or
    3. Incorporate the pertinent requirements into the project specification.

    Inform NAVFACENGCOM 15G, if the latest issue of a referenced publication is not compatible with this guide specification.

    Delete those referenced publications not used for the project specification.

11. The "SUBMITTALS" article in Part 1 of the section includes a SPECSINTACT coding. This provides an automated project "Submittals Register" when utilizing the SPECSINTACT Processing System. The system prints two letters and two numbers on the hard copy for each submittal type (i.e. SD-14 for "Samples"). The letters and numbers (i.e., SD-14 for "Samples") are submittal descriptions defined in Section 01300, "Submittals."

12. Do not repeat information shown on the drawings in the specification. Use the specifications to establish quality of materials and workmanship, methods of installation, equipment functions, and required testing. Use the drawings to indicate dimensions, relationship of materials, quantities, and location and capacity of equipment. Use keywords common between the specifications and drawings.

13. CAUTION: Coordination of this section with other sections of the project specification and with the drawings is mandatory. If materials or equipment are to be furnished under this section and installed under other sections or are indicated on the drawings, state that fact clearly for each type of material and item of equipment. Review the project specifications and drawings to ensure that complete and operational systems and equipment will be provided.

14. Changes or revisions to this document, since the date of original NAVFAC approval, have been performed by the Guide Specifications Division (NAVFAC 15G). (Phone: (805) 982-6103, DSN 551-6103), FAX: (805) 985-6465/982-5196.

15. Suggestions for improvement of this specification will be welcomed using the Navy "Change Request Form" subdirectory located in

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Commanding Officer
Naval Construction Battalion Center
NAVFAC 15G/CESO 158
1000 23rd Avenue
Port Hueneme, CA 93043-4301

FAX: (805) 985-6465/982-5196

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STANDARDIZATION DOCUMENT IMPROVEMENT PROPOSAL

INSTRUCTIONS

1. The preparing activity must complete blocks 1, 2, 3, and 8. In block 1, both the document number and the revision letter should be given.
2. The submitter of this form must complete blocks 4, 5, 6, and 7.
3. the preparing activity must provide a reply within 30 days from receipt of the form.

NOTE: This form may not be used to request copies of documents, nor to request waivers, or clarification of requirements on current contracts. Comments submitted on this form do not constitute or imply authorization to waive any portion of the referenced document(s) or to amend contractual requirements.

I RECOMMEND A CHANGE	1. DOCUMENT NUMBER NFGS-00100G	2. DOCUMENT DATE (YYMMDD) 950930

3. DOCUMENT TITLE
INSTRUCTIONS TO BIDDERS

4. NATURE OF CHANGE (*identify paragraph number and include proposed rewrite, if possible. Attach extra sheets as needed.*)

5. REASON FOR RECOMMENDATION

6. SUBMITTER

a. NAME (Last, First, Middle Initial)	b. ORGANIZATION	
c. ADDRESS (*Include Zip Code*)	d. TELEPHONE (*Include Area Code*) (1) Commercial (2) AUTOVON (*If applicable*)	7. DATE SUBMITTED (YYMMDD)

8. PREPARING ACTIVITY

a. NAME MS. JOAN SAMSON, P.E.	b. TELEPHONE (*Include Area Code*) (1) Commercial (805) 982-5543 (2) AUTOVON 551-5543
c. ADDRESS (*Include Zip Code*) NAVAL CONSTRUCTION BATTALION CENTER NAVFAC 15G/CESO 158, 1000 23rd AVENUE PORT HUENEME, CA 93043-4301	IF YOU DO NOT RECEIVE A REPLY WITHIN 45 DAYS, CONTACT: Defense Quality and Standardization Office 5203 Leesburg Pike, Suite 1403, Falls Church, VA 22041 Telephone (703) 756-2340 AUTOVON 289-2340

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